

Terms of Use – Sahamati Net Agent

Version: 1.0

Last Updated on: July 03, 2026

These Terms of Use (“**Terms**”) govern your (“**you**” or “**your**”) access and/or use of the Sahamati Net Agent (*defined below*) provided by Sahamati Foundation (“**Sahamati**”, “**we**”, “**us**” or “**our**”). Sahamati is a company established under Section 8 of the Companies Act, 2013, which fosters the establishment and development of common frameworks for interoperability and related standards for its members and other participants in the account aggregator ecosystem. These Terms also include our privacy policy, available at <https://sahamati.org.in/privacy-policy/> (“**Sahamati Privacy Policy**”).

Please read these Terms carefully before accessing or using Sahamati Net Agent. These Terms may be amended by us in accordance with the provisions hereunder, and the Terms, as amended from time to time, shall apply to you. You may always review the current version of these Terms on the Sahamati website.

These Terms shall be read together with the Sahamati Membership Terms. The terms not defined in these Terms shall have the meaning as ascribed to them under the Sahamati Membership Terms.

1. USER ACKNOWLEDGMENT AND CONSENT

- 1.1. These Terms establish a contractual relationship between you and Sahamati relating to your access and use of Sahamati Net Agent. By using Sahamati Net Agent, you agree that you have read, understood, and are bound by these Terms, and that you comply with the requirements listed here. If you do not agree to these Terms, you may not access or use Sahamati Net Agent.
- 1.2. If you represent an entity, organisation, or any other legal person, not being a natural person, you confirm and represent that you are duly authorised by the entity, organisation, or legal person to accept these Terms and have the necessary power and authority to bind such entity, organisation, or legal person to these Terms.
- 1.3. You shall be responsible for your agents and/or contractors’ use of Sahamati Net Agent on your behalf, and for their compliance with these Terms.
- 1.4. You understand and agree that personal data, if any, collected by Sahamati to enable you to access and use Sahamati Net Agent, shall be as per the Sahamati Privacy Policy.

2. DEFINITIONS

- 2.1 “**Member(s)**” with its grammatical variations and cognate expressions shall mean an active member of Sahamati that has accepted the Sahamati Membership Terms and includes FIUs, AAs, and FIPs.

- 2.2 **“Sahamati Net Agent”** shall mean the software (comprising, amongst others, Docker images, Helm charts, configuration files, and associated deployment artifacts) made available by Sahamati to Account Aggregators ("AAs") for the purpose of capturing specified metrics from the AA's infrastructure and transmitting such metrics to Sahamati's monitoring endpoint, for the purpose of computing and reporting various performance metrics across the Account Aggregator ecosystem.

3. SERVICES:

- 3.1. Subject to your compliance with these Terms, Sahamati hereby grants you a limited, non-exclusive, non-transferable, non-sublicensable licence to use Sahamati Net Agent.

4. ELIGIBILITY

- 4.1. By accepting these Terms, you represent and warrant that you are registered as an account aggregator in Sahamati's Central Registry.
- 4.2. If at any time, Sahamati is of the opinion that you do not satisfy the eligibility criteria, including but not limited to any misrepresentation, misuse of Sahamati Net Agent, or fraudulent or suspicious activities, Sahamati retains all rights to disable your access to Sahamati Net Agent and/or suspend your use of Sahamati Net Agent with immediate effect.

5. SERVICES

- 5.1. The Services may include links to content and information owned by, licensed to, or otherwise made available by a third party (**“Third Party Website”**). You understand and acknowledge that Third Party Websites are the responsibility of the respective third-party or affiliate that own such Third-Party Websites. You further acknowledge that your access and/or use of such Third-Party Websites is solely at your own risk.
- 5.2. We make no representations and disclaim all warranties and liabilities arising out of or pertaining to such Third-Party Websites including their accuracy or completeness. Should you access any Third-Party Websites, you shall be governed and bound by the terms and conditions of such Third-Party Websites. Sahamati does not accept any responsibility for access to or any content and information made available on Third Party Websites.

6. PROVISION OF, AND ACCESS TO INFORMATION

- 6.1. To access Sahamati Net Agent, you agree to provide the work email ID(s) of individual(s) from your organisation who are authorised to access and use Sahamati Net Agent through Sahamati's private GitHub repository or such other means as prescribed by Sahamati from time to time. The GitHub account must be associated with the AA's company email ID.

- 6.2. You agree and warrant to provide true, complete, and up-to-date Information at all times. You further acknowledge and agree that in case of any change in the Information, it is your sole responsibility to immediately update the Information, in the mode and manner prescribed by Sahamati from time to time.

7. INTELLECTUAL PROPERTY

- 7.1. All rights, title, and interest in and to Sahamati Net Agent, including text, format, graphics, software, photographs and other images, videos, sounds, trademarks, and service marks are owned by or otherwise licensed to us.
- 7.2. Except as stated in these Terms, nothing in these Terms should be construed as conferring any right, title, interest, claim or licence to our or any third party's intellectual property rights. Any such transfer, licence or assignment should be between or among the parties thereto in writing.
- 7.3. You hereby grant to Sahamati a non-exclusive and royalty-free licence for the duration of these Terms to use, reproduce and display your logo, trademark, and brand name for marketing and publicity purposes, including on Sahamati's website in respect of the endeavours contemplated within these Terms.

8. RESTRICTIONS

- 8.1. You shall not use Sahamati Net Agent in any manner except as expressly permitted in these Terms. Without limiting the generality of the preceding sentence, you shall not:
- a. infringe, violate, or misappropriate any proprietary rights, including but not limited to copyrights, patents, trademarks, or trade secrets, of any party;
 - b. except as may be provided hereunder, copy, display, distribute, modify, publish, reproduce, store, transmit, post, translate, create any derivative works from, or licence Sahamati Net Agent or any portion thereof;
 - c. use Sahamati Net Agent to transmit any data or send or upload any material that contains viruses, trojan horses, worms, timebombs, keystroke loggers, spyware, adware, or any other harmful programmes or similar computer code designed to adversely affect the operation of any computer software or hardware;
 - d. use any robot, spider, other automated device, or manual process to monitor or copy Sahamati Net Agent or any portion thereof;
 - e. upload or transmit any information or content that is obscene, pornographic, paedophilic, immoral, invasive of another's privacy, or is relating to or encouraging money laundering or gambling, an online game that causes user harm, or promoting

enmity between different groups on the grounds of religion or caste with the intent to incite violence;

- f. act in an abusive or threatening manner or use abusive or threatening language on or through Sahamati Net Agent;
- g. upload or transmit information or content that is harmful to children or that impersonates another person, or deceive or mislead any addressee about the origin of a message, or knowingly and intentionally communicates any misinformation or information which is patently false and untrue or misleading in nature or, in respect of any business of the Indian government, is identified as fake or false or misleading by the fact check unit of the Indian government;
- h. threaten the unity, integrity, defence, security, or sovereignty of India, friendly relations with foreign states, or public order, or cause incitement to the commission of any cognizable offence, or prevent investigation of any offence, or insult another nation in any manner;
- i. use Sahamati Net Agent in any unlawful manner, for fraudulent or malicious activities, or in any manner inconsistent with these Terms;
- j. reverse engineer, decompile, or disassemble Sahamati Net Agent or any portion thereof;
- k. take any action that may adversely affect Sahamati Net Agent or any portion thereof; or
- l. violate Applicable Laws in any manner.

9. MODIFICATION OF TERMS

- 9.1. Sahamati may modify these Terms with or without a prior notice to you at any time. Sahamati will use commercially reasonable efforts to provide a notice of any such modification by electronic mail or by publishing the changes on Sahamati's website www.sahamati.org.in. You may terminate your use of Sahamati Net Agent if the Terms are modified in a manner that substantially affects your rights in connection with the use of Sahamati Net Agent. Your continued use of Sahamati Net Agent after notice of any change to these Terms will be deemed to be your agreement to the amended Terms.

10. DISCLAIMERS

- 10.1. To the extent permitted by Applicable Law, Sahamati Net Agent is provided on an "as is" and "as provided" basis.
- 10.2. To the fullest extent permissible under Applicable Law, unless otherwise agreed under this Terms, Sahamati expressly disclaims all other warranties of any kind, express or implied, with respect to Sahamati Net Agent, including warranties of merchantability, compatibility,

applicability, and appropriateness, fitness for a particular purpose, satisfactory quality, accuracy, and any warranties that may arise out of the course of performance or course of dealing.

- 10.3. Sahamati does not accept any responsibility for the Information as made available or updated by you. Sahamati does not accept any responsibility or liability for any loss or damage that you may suffer or incur if any Information, documentation, material, or data provided to avail, or on Sahamati Net Agent is incorrect, incomplete, inaccurate, or misleading.

11. FEES

- 11.1. Sahamati is currently offering Sahamati Net Agent to you at no cost, however, Sahamati reserves the right to charge you for Sahamati Net Agent. Any fees in the future shall be levied prospectively.
- 11.2. You agree that Sahamati may, at any time, charge, modify or waive fees required to access Sahamati Net Agent. Your continued use of Sahamati Net Agent after such change in the fees will be considered to be your acceptance of such changes, and applicability of these Terms to such change.

12. INDEMNITY

- 12.1. You shall indemnify, defend at and hold Sahamati, its officers, associates, successors, assigns, licensors, employees, directors, agents, and representatives, harmless from and against any direct or indirect losses, actions, damages, penalties, cost and expenses, claim, demand, lawsuits, a judicial proceeding, (including, without limitation, from all damages, liabilities, settlements, costs, and attorney's fees) arising from or relating to:
- a. breach of these Terms by you;
 - b. acts, commissions or omissions, errors, misrepresentations, misconduct, negligence, fraud, forgery, dishonesty, violation attributable to you and/or your personnel/agents/representatives, in violation of these Terms;
 - c. contravention of any Applicable Law by you; and
 - d. any claim from any Competent Authority or any third party as a result of any action or inaction on your part, including but not limited to a breach of these Terms or any acts committed beyond the scope of these Terms.

13. LIMITATION OF LIABILITY

- 13.1. In no event shall we, our officers, directors and employees, or our contractors, agents, licensors, partners, or suppliers be liable to you for any special, indirect, incidental, consequential, punitive, reliance, or exemplary damages (including without limitation lost

business opportunities, lost revenues, or loss of anticipated profits or any other pecuniary or non-pecuniary loss or damage of any nature whatsoever, including but not limited to abuse or breach of data), even if we or an authorised representative have been advised of the possibility of such damages, arising out of or relating to: (a) these Terms, (b) Sahamati Net Agent, (c) your use or inability to use and/or access Sahamati Net Agent, or (d) any other interactions through Sahamati Net Agent.

- 13.2. Notwithstanding anything to the contrary, the maximum aggregate liability of Sahamati shall be limited to INR 10,000/- (Rupees Ten Thousand only).

14. **TERM AND TERMINATION**

- 14.1. These Terms shall remain in effect unless terminated in accordance with the terms hereunder ("**Term**").

- 14.2. Sahamati may suspend or terminate your access to or use of the Services, or any portion thereof, immediately in the event:

- a. You are suspended or expelled as a Member as per the Sahamati Membership Suspension, Expulsion and Re-admission Rules;
- b. your relevant certificate of registration is cancelled or revoked by a Financial Sector Regulator;
- c. you cease or are unable to carry on your business; or
- d. Sahamati receives a court order or directive from any Competent Authority to this effect.

- 14.3. Upon termination under this Clause 14:

- a. Your access to the Sahamati Net Agent may be revoked and you may no longer be able to access or use the same. Your access to other Sahamati services may also be restricted, at Sahamati's sole discretion.
- b. These Terms shall terminate, except for those clauses that expressly survive or are intended to survive termination or expiry.

- 14.4. Notwithstanding anything to the contrary contained in the Terms, upon termination of your access to or use of Sahamati Net Agent, you must immediately stop using Sahamati Net Agent.

15. **MISCELLANEOUS PROVISIONS**

- 15.1. **Severability:** If any provision of these Terms is determined by any court or other Competent Authority to be unlawful or unenforceable, the other provisions of these Terms will continue in

effect. If any unlawful or unenforceable provision would be lawful or enforceable if part of it were deleted, that part will be deemed to be deleted, and the rest of the provision will continue in effect (unless that would contradict the clear intention of the clause, in which case the entirety of the relevant provision will be deemed to be deleted).

- 15.2. **Amendment:** These Terms may be amended by us in accordance with the provisions hereunder, and the Terms, as amended from time to time, shall apply to you. You may always review the current version of these Terms on the Sahamati website.
- 15.3. **Waiver:** No failure or delay in exercising any right, power, or privilege hereunder shall operate as a waiver thereof nor shall any single or partial exercise of any right, power, or privilege preclude any other or further exercise thereof or the exercise of any other right, power or privilege. Every right or remedy herein conferred or reserved hereunder shall be cumulative and shall be in addition to every right and remedy existing at law or equity or by statute and the pursuit of any one right or remedy shall not be construed as an election.
- 15.4. **Force Majeure:** You shall not be liable for any breach of these Terms if such breach is caused by an event that is unforeseeable and beyond your reasonable control (such as, depending on the circumstances, unavailability of any communication system, breach or virus in our system, sabotage, fire, flood, explosion, acts of God, civil commotion, strikes or industrial action of any kind, riots, insurrection, war, acts of government, unauthorised access to computer data and storage devices, computer crashes and regulatory or government actions ("**Force Majeure Event**"). In such circumstances, you will be entitled to a reasonable extension of time to perform your obligations and shall take commercially reasonable methods to inform Sahamati of the Force Majeure Event and use all reasonable endeavours to mitigate the effects of the Force Majeure Event.
- 15.5. **Notices:** All notices or other communications under these Terms shall be in writing and, unless otherwise specified, may be sent by email, speed post or courier or any other acceptable mode of electronic communication. Any such notice or other communication will be deemed to be effective: (a) if delivered in person, at the time of such delivery; (b) if dispatched by speed post or courier, when recall of the letter is outside the control of the sender; (c) if sent by email, when such email enters the sent items folders.
- 15.6. **Third Party Rights:** No third party shall have any rights to enforce any terms contained herein.
- 15.7. **Regulatory Changes:** You acknowledge and agree that we may have to modify Sahamati Net Agent to comply with Applicable Laws. As a result of this, you may be unable to access or use all or any part of Sahamati Net Agent. We shall not be liable to you for such inability to use Sahamati Net Agent pursuant to our compliance with Applicable Laws.

16. GOVERNING LAWS AND JURISDICTION

- 16.1. These Terms shall be governed by and construed in accordance with the laws of India for the time being in force.

- 16.2. In the event of any dispute relating to these Terms, the parties shall endeavour to amicably resolve such disputes in good faith. If the parties fail to resolve such disputes, the dispute will be referred to an online dispute resolution (“**ODR**”) institution, mutually agreed between the parties in writing. The ODR institution shall accordingly appoint a mediator, conciliator, or an arbitrator, appointed in accordance with the applicable mediation, conciliation, or arbitration rules, as the case may be, of such ODR institution. The mediation/ conciliation process shall be administered in accordance with the applicable mediation or conciliation rules of the relevant ODR institution. The arbitration proceedings shall be undertaken in terms of the rules of the ODR institution and in accordance with the Arbitration and Conciliation Act, 1996. In case of any inconsistency between the rules of the ODR institution and the Arbitration and Conciliation Act, 1996, the provisions of the Arbitration and Conciliation Act, 1996 shall prevail. The seat of arbitration proceedings shall be Bengaluru, India and the language of the proceedings shall be English. The decision of the arbitrator appointed by the ODR institution shall be binding on the parties to the dispute and the parties shall take such actions as may be necessary to give effect to the decision of the arbitrator.
- 16.3. If the parties are unable to mutually agree upon an ODR institution under Clause 16.2, such dispute shall be subject to the exclusive jurisdiction of courts in Bengaluru, India.
- 16.4. All expenses in relation to (i) any dispute referred to an ODR institution, (ii) litigation costs as described hereinabove, shall be borne by the respective parties.
- 16.5. The parties to such proceedings shall keep them confidential and not disclose to any person, other than on a need-to-know basis or to legal advisors, unless required to do so by law.

17. CONTACT DETAILS

- 17.1. To exercise any of the rights or to share any grievance or queries, please write us an email at legal@sahamati.org.in.
